

v. *USA Taekwondo* (2021) 11 Cal.5th 204, 213). “[T]he existence of a duty is a question of law for the court.” (*Kentucky Fried Chicken of California, Inc. v. Superior Court* (1997) 14 Cal.4th 814, 819). “The question of whether a duty exists is a question of law and must be decided by the court on a case-by-case basis.” (*Dutton v. City of Pacifica* (1995) 35 Cal.App.4th 1171, 1175). “Whether a legal duty of care exists in a given factual situation is a question of law to be determined by the court, not the jury.” (*Carleton v. Tortosa* (1993) 14 Cal.App.4th 745, 754). “The existence and scope of duty are legal questions for the court.” (*Coldwell Banker Residential Brokerage Co. v. Superior Court* (2004) 117 Cal.App.4th 158, 163.”

Defendants proffer the following facts to support their assertion that they did not owe a duty under these circumstances: Before the date of the alleged incident, defendants did not alter or modify the sidewalk where the alleged incident happened in order to benefit their property.¹⁷ Defendants did not at any time make any improvements to their property such as landscaping or placing underground sprinklers that could have affected the sidewalk where the alleged incident happened.¹⁸ Before the date of the alleged incident, Defendants had no knowledge of any reports, complaints, or notice of any injuries or trip and fall incidents related to the sidewalk where the incident happened because the height differential between the two concrete slabs were so minimal.¹⁹ Prior to the alleged incident, defendants had not observed any alleged dangerous condition or defect in the sidewalk area in front of the property prior to December 8, 2023 in the area where plaintiff allegedly fell.²⁰

However, the court agrees with Plaintiff, in opposition, who contends a factual dispute lies with regard to whether defendants observed the defect in the sidewalk area in front of the property prior to December 8, 2023 in the area where plaintiff allegedly fell. Plaintiff points to defendant Dudock’s deposition testimony acknowledging his observation of defects (elevation differences) in the sidewalk when he purchased the property in 2008.²¹ The court disregards defendants’ attempt to limit their observation to “dangerous” conditions since that involves, as discussed above, a factual determination. In light of the factual dispute(s), the court cannot yet reach a conclusion with regard to whether defendants owed Plaintiff a duty.

IV. CONCLUSION

Based on the foregoing, defendants Dudock and Freeman’s motion for summary judgment is DENIED.

The Court will prepare the formal Order.

Calendar Lines # 4
Case Name Christopher Love vs Ford Motor Company et al
Case No. 24CV453450
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary judgment, or in the alternative, summary adjudication against plaintiff Christopher Love’s first, second, third, fourth, and sixth causes of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.
I. BACKGROUND This claim arises from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”) by Plaintiff

¹⁷ See Defendants’ UMF, Fact No. 16.

¹⁸ See Defendants’ UMF, Fact No. 17.

¹⁹ See Defendants’ UMF, Fact No. 18.

²⁰ See Defendants’ UMF, Fact No. 19.

²¹ See Plaintiff’s Response UMF, Fact No. 19. See also Plaintiff’s AMF, Fact No. 20.

Christopher Love against defendants Ford Motor Company (“Ford”) and Walnut Creek Ford. Plaintiff asserts to have entered a warranty contract with Ford on August 10, 2021, for a 2021 Ford Mustang, vehicle identification number 1FA6P8TH0M5126671 that was manufactured and/or distributed by Ford (the “Subject Vehicle”). (Complaint, ¶ 7). The warranty contract contained various warranties, including, *inter alia*, a bumper to bumper warranty and powertrain warranty. (*Id.* at ¶ 8).

Prior to Plaintiff’s purchase of the Subject Vehicle, Ford knew that vehicles with the same 10-speed transmissions as the Subject Vehicle suffered from defects that can cause the vehicles and their 10-speed transmissions to experience hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (collectively, the “Transmission Defect”). (Complaint, ¶ 24). Ford knew about the Transmission Defect from, *inter alia*, pre-production design failure mode and analysis data, production failure mode and analysis data, and early consumer complaints made exclusively to Ford’s network of dealers and directly to Ford. (*Id.* at ¶ 25).

Plaintiff alleges the following causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

Ford filed the instant motion for summary judgment, or in the alternative, summary adjudication on April 2, 2026, which was originally set to be heard on December 8, 2026. On April 6, 2026, the court (Hon. Nishigaya) granted Ford’s *ex parte* application to advance the hearing on Ford’s motion to June 25, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply.

II. LEGAL STANDARD

A motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)). “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*)).

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar, supra*, 25 Cal.4th at 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741). “A party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’”

(*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted]). Code of Civil Procedure section 437c(t): “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that *does not completely dispose* of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t).

“There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540 (*Reid*)).

Pursuant to Code of Civil Procedure section 437c(p)(1), the plaintiff moving for summary judgment must satisfy the initial burden of proof by presenting proving each element of a cause of action. In reviewing the motion, courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389; *Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99). Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1)). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166).

A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*). “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

Code of Civil Procedure section 457c(c): “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119). “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or

declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82). If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544).

III. PROCEDURAL ISSUES

A. REQUEST FOR JUDICIAL NOTICE AND EVIDENTIARY OBJECTION

Plaintiff’s request for judicial notice of Exhibits 1 through 17, which consists of documents that were purportedly filed and unsealed in *Avila v. Ford Motor Co.*, No. 22-CV-00542-PCP, and Exhibit 18 which consists of 25 Ford Technical Service Bulletins (“TSBs”) is DENIED. While Plaintiff asserts that these documents are “part of the record” or “publicly accessible”, the court is unable to determine whether the documents were filed with a court, and Plaintiff provides no further explanation on how the TSBs “were already publicly accessible.” For example, Exhibits 1 through 17 are not file-stamped or endorsed by any clerk of the court and the documents do not contain any identifying information (*e.g.*, case number) linking them to the *Avila* matter. The TSBs in Exhibit 18 and Plaintiff’s requests thereof are devoid of any information that would indicate that the TSBs were publicly accessible. In fact, some of the TSBs appear to have been produced as part of discovery in another matter (*e.g.*, “O’Connor, Justin v. Ford”). Accordingly, Plaintiff has not “furnishe[d] the court with sufficient information to enable it to take judicial notice of the matter.” (Evid. Code, § 453, subd. (b)). In any event, Exhibits 1 through 17 would be irrelevant as the truth of the contents of a court record cannot be judicially noticed (see *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81), and Exhibits 1 through 18, which appear to be documents produced through discovery are not matters appropriate for judicial notice. (See *TSMC North America v. Semiconductor Manufacturing Internat. Corp.* (2008) 161 Cal.App.4th 581, 594, fn. 4).

While Plaintiff cites in his opposition *Bowser v. Ford Motor Co.* (2022) 78 Cal.App.5th 587, 599 (*Bowser*) for the proposition that TSBs are admissible evidence (Opposition, p. 12:5-9), *Bowser* did not hold that TSBs are admissible as a matter of law but instead discussed the TSBs as context for the expert opinions at trial. Even if the court were to consider the TSBs as proper matters for judicial notice, Ford’s hearsay objection to the same would be well-taken. (See *People v. Wood* (1998) 17 Cal.4th 448, 445 [holding a court may not take judicial notice of hearsay statements in court documents]). Plaintiff has not demonstrated any hearsay exception (*e.g.*, business records, party admission) applies.

Given the court’s determination on Plaintiff’s request for judicial notice, the court need not reach the merits of Ford’s evidentiary objections thereto.

B. PROCEDURAL VIOLATION

Plaintiff’s response to Ford’s separate statement suffers from procedural deficiencies. For nearly all of Ford’s undisputed material facts, Plaintiff failed to (1) indicate whether the fact is disputed or undisputed; and (2) provide evidence supporting the disputed nature of the material fact. (Code Civ Proc., § 437c, subd. (b)(3)). Furthermore, Plaintiff’s responses raise evidentiary objections within the separate statements rather than the format required by California Rules of Court, rule 3.1354. The court declines to issue a ruling on Plaintiff’s evidentiary objections because they are not presented in the proper format. (See *Vineyard Spring Estates v. Super. Ct.* (2004) 120 Cal.App.4th 633, 642 (*Vineyard*) [trial courts only have duty to rule on evidentiary objections presented in proper format]).

Ford’s response to Plaintiff’s separate statement suffers from similar procedural deficiencies. While Ford properly states whether Plaintiff’s material facts are disputed, Ford fails to provide evidence in support. (Code Civ. Proc., § 437c, subd. (b)(3)). Ford also errs by raising evidentiary objections within its response to the separate statement in

violation of California Rules of Court rule 3.1354. The court also declines to issue a ruling on the evidentiary objections raised in Ford’s responses to Plaintiff’s separate statement. (See *Vineyard, supra*, 120 Cal.App.4th at 642).

IV. ANALYSIS

A. FIRST THROUGH THIRD CAUSE OF ACTIONS: SONG-BEVERLY CONSUMER WARRANTY ACT CLAIMS

A plaintiff pursuing a claim under the Act must prove that “(1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101 (*Oregel*)). The second element is the “only affirmative step the Act imposes on consumers.” (*Oregel, supra*, 90 Cal.App.4th at p. 1103). Essentially, the presentation of a vehicle for warranty repairs is a prerequisite for claims under Civil Code section 1793.2, subdivision (a)(3), (b), and (d)(2). (See Civ. Code, § 1793.2, subd. (a)(3) [requiring provision of sufficient literature or replacement parts to effect repairs during express warranty period]; Civ. Code, § 1793.2, subd. (b) [requiring commencement of service and repair within reasonable time]; Civ. Code, § 1793.2, subd. (d)(2) [requiring restitution after reasonable attempts at conformance]).

Ford emphasizes that under Civil Code section 1793.2, subdivision (d)(1), Ford is required to replace the Subject Vehicle or make restitution only if it is unable to service or repair the Subject Vehicle “to conform to applicable express warranties after a reasonable number of repair attempts.” (Motion, p. 9:3-5). Ford goes on to argue that because Plaintiff never presented the Subject Vehicle for any warranty repairs, let alone repeat repairs as required by *Silvio v. Ford Motor Company* (2003) 109 Cal.App.4th 1205 (*Silvio*), Ford’s obligations under the Act were never triggered, and consequently, Plaintiff’s claims under the Act are barred. (*Id.*, at p. 10:10-13).

In *Silvio*, the plaintiffs presented their vehicle to an authorized dealer for repairs on one occasion after experiencing sudden and rapid acceleration. (*Silvio, supra*, 109 Cal.App.4th at p. 1207). After experiencing the same issue again despite being informed that the vehicle had no issues, the plaintiffs requested a buyback, and upon Ford’s refusal, the plaintiffs filed suit. (*Ibid*). The *Silvio* court held that one instance of presentation was insufficient under Civil Code section 1793.2, subdivision (d), which required a buyback only when the manufacturer fails to repair after a “reasonable number of attempts.” (*Id.* at pp. 1208-1209).

Here, Ford relies on the August 6, 2024 repair reports and the declaration of its expert, Eric Kalis (“Kalis”). The August 6, 2024 repair report notes that the Subject Vehicle was presented for two recalls: (1) 23C35 Body Control Module BCM Configuration Update; and (2) 23E12 Underhood Liquid Fuel Jumper Line Replacement. (Ford’s Separate Statement of Undisputed Material Facts [“SSUMF”], Nos. 8, 11; Declaration of Katherine P. Vilchez [“Vilchez Decl.”], Ex. E). Kalis declares that the recalls did not fall within the warranty, and even if they had, the applicable bumper-to-bumper warranty (three-year or 36,000 miles) expired because the Subject Vehicle was presented at 47,602 miles. (SSUMF, Nos. 8-11; Declaration of Eric Kalis [“Kalis Decl.”], ¶¶ 13, 15-16). Kalis further declares, “The records indicate that this Recall was also performed proactively without any complaint from the customer”. (SSUMF, No. 14; Kalis Decl., ¶ 16).

In opposition, Plaintiff disputes Ford’s assertion that no repairs under warranty were made to the Subject Vehicle and maintains that the August 6, 2024 repair visit fell under the five-year or 60,000 miles powertrain warranty

instead.²² In support, Plaintiff offers his own declaration, attesting that the Subject Vehicle suffered from defects in the transmission, windshield wiper fluid system, and brake system repairs subject to a safety recall and that he “presented the Subject Vehicle to Ford’s authorized repair facilities on approximately five separate occasions for repair” of those defects after discovering the issues on August 10, 2024. (Declaration of Christopher Love [“Love Decl.”], ¶¶ 5-7). Plaintiff further declares, “Despite these repair attempts, Ford and its authorized dealers were unable to conform the vehicle to the applicable express warranty.” (*Id.* at ¶ 7). Plaintiff further notes that the five-year or 60,000 miles powertrain warranty remained in effect on August 6, 2024, because the Subject Vehicle did not exceed the 60,000-mile warranty until August 18, 2025—*i.e.*, over a year later. (*Id.* at ¶ 8).

On reply, Ford insists that the five-year or 60,000 miles powertrain warranty is “irrelevant to the analysis” because Kalis declares, albeit without further explanation, that the only applicable warranty to the proactive recall repairs is the three-year or 36,000 miles bumper-to-bumper warranty. (Kalis Decl., ¶¶ 15-16). Even so, Ford provides no response to Plaintiff’s declaration that he presented the Subject Vehicle on five separate occasions for repairs after the August 6, 2024 repair visit, and Ford could not conform the Subject Vehicle to the applicable warranty (*i.e.*, the powertrain warranty). (Love Decl., ¶¶ 6-8). Accordingly, Plaintiff demonstrates the existence of a triable issue of material fact as to whether Plaintiff presented the Subject Vehicle multiple times for repairs under warranty. (See *Oregal, supra*, 90 Cal.App.4th at p. 1103 [noting consumers have burden to present the vehicle for a reasonable opportunity to repair and have no responsibility for manufacturer’s choice to take the opportunity]; see also *Reid, supra*, 50 Cal.4th at p. 540 [precluding trial court from weighing the evidence or determining credibility of declarant]).

Ford’s remaining arguments are unsupported by law or evidence. Ford argues that the August 6, 2024 repairs made pursuant to proactive recalls are not covered by the warranty but provided no authority to support this assertion in its moving papers. Instead, Ford provides the pertinent authorities—*Noori v. Jaguar Land Rover N. Am., LLC* (C.D.Cal. Mar. 31, 2021, No. 2:19-cv-08624-FLA (JPRx) 2021 LX 46804, at *12 (*Noori*) and *Adams v. FCA US LLC* (C.D.Cal. Dec. 27, 2016, No. CV 16-4317-JFW (MRWx) 2016 LX 59307, at *16 (*Adams*))—in its reply. The court declines to consider this argument because Ford “may not attempt to rectify their omissions and oversights for the first time in their reply briefs because this deprives the opposing party of an opportunity to respond.” (*Keyes v. Bowen* (2010) 189 Cal.App.4th 647, 656 (*Keyes*); see *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 (*Public Employment*) [“The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived.”]). Ford also argues that Plaintiff provides no evidence that it failed to make service literature and replacement parts available, but the cited evidence makes no reference to service literature or replacement parts. (See SSUMF, Nos. 5-12 [citing Kalis Declaration and Vilchez Declaration]). The court rejects this undeveloped argument. (*Public Employment, supra*, 29 Cal.App.5th at p. 939).

Given the foregoing, the court DENIES Ford’s motion for summary adjudication of the first, second, and third causes of action.

B. FOURTH CAUSE OF ACTION: BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY

Ford avers that Plaintiff’s fourth cause of action for the breach of the implied warranty of merchantability pursuant to the Act (Civ. Code, §§ 1791.1, 1794, 1795.5) fails as a matter of law because Plaintiff has no evidence that the

²² Plaintiff also argues that under *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 141 (*Donlen*), “repairs performed pursuant to a recall count as repair opportunities” as a matter of law, but the argument is unsupported. *Donlen* concerned an appeal from an order granting a motion for new trial and considered whether a trial court erred by admitting evidence of a repair not made under warranty. (*Id.* at pp. 148-149). Moreover, the page Plaintiff cites merely recounts the factual background of the case rather than any determination of law.

Subject Vehicle experienced any defects during the first year of ownership such that the Subject Vehicle was not fit for the ordinary purposes for which it was sold. (Motion, p. 11:17-19). Ford points out that the duration of the implied warranty of merchantability is at most one year following the sale of the good (Civ. Code, § 1791.1), and Plaintiff first presented the Subject Vehicle for repairs on May 13, 2023—two years after its purchase. (SSUMF, No. 7).

As pointed out in the opposition, however, “The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. [Citations.]” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304). “In the case of a latent defect, a product is rendered unmerchantable and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (*Id.* at p. 1305). Ford’s argument on this issue is therefore incomplete as it fails to address the alleged latent defects of the Subject Vehicle. (See Complaint, ¶ 56 [“The subject vehicle was sold with one or more latent defect(s) set forth above.”]; see also *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477 [pleadings frame the issues to be resolved on a motion for summary judgment]). Ford does not and cannot remedy its failure to address the latent defect allegation in its reply. (See *Keyes, supra*, 189 Cal.App.4th at p. 656). Furthermore, that Plaintiff failed to present the Subject Vehicle within one year of its purchase is of no moment, considering that “there is no requirement the seller be given an opportunity to repair when the implied warranty of merchantability is breached.” (*Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 404).

Given the foregoing, the court DENIES Ford’s motion for summary adjudication of the fourth cause of action.

C. SIXTH CAUSE OF ACTION: FRAUDULENT INDUCEMENT – CONCEALMENT

In moving for summary adjudication on the sixth cause of action, Ford asserts that (1) Plaintiff has no evidence of any complaint, issue or repair relating to the Subject Vehicle’s transmission; and (2) Plaintiff has no evidence, and cannot reasonably obtain evidence, to demonstrate Ford’s prior knowledge of the Transmission Defect.

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if the plaintiff had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 [citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311]).

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that “plaintiff does not possess, and *cannot reasonably obtain*, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855, emphasis added). Proof that the plaintiff lacks needed evidence can consist of introducing “factually devoid” discovery responses where there has been an adequate opportunity for discovery. (See *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590). But “a defendant cannot simply ‘argue’ that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative ‘showing’ that the plaintiff *cannot* do so.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103 (*Andrews*), italics original). When relying on “factually devoid” discovery responses, the defendant must show that “discovery was sufficiently comprehensive, and plaintiffs’ responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses].” (*Id.* at p. 107 [citing *Scheidig v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

On September 3, 2025, Plaintiff responded to Ford's special interrogatories, which required Plaintiff to "state all facts", "identify all persons", and "identify all documents" supporting his fraudulent concealment claim. (SSUMF, Nos. 15-18; Vilchez Decl., Ex. C). Plaintiff responded by referencing his allegations within the Complaint, his 10-page document production, and vaguely referring to Ford's "agents, representatives, and employees". (SSUMF, Nos. 19-21).

As Ford argues, Plaintiff cannot rely on the allegations within its Complaint in opposing a motion for summary judgment. (See Motion, p. 13:13, fn. 5 [citing *Romak Iron Works v. Prudential Ins. Co.* (1980) 104 Cal.App.3d 767, 775]; see also *Andrews, supra*, 138 Cal.App.4th at p. 107 ["If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations...the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses."]). Furthermore, Plaintiff's 10-page document production consists of repair reports, vehicle loan information, the Subject Vehicle's registration, and the Subject Vehicle's window stickers, which provide no evidentiary support for the assertion that the Subject Vehicle suffered from the Transmission Defect or that Ford had prior knowledge of the Transmission Defect. (Vilchez Decl., Ex. C). Notably, all documents are dated after Plaintiff had purchased the Subject Vehicle, and therefore, do not demonstrate Ford's prior knowledge of the Transmission Defect before Plaintiff purchased the Subject Vehicle.

While Plaintiff introduces his own declaration to dispute Ford's assertion that the Subject Vehicle suffered from the Transmission Defect (Love Decl., ¶ 5), Plaintiff offers no admissible evidence to contradict Ford's evidence that Ford had prior knowledge but concealed the Transmission Defect. This omission is fatal to Plaintiff's claim.

Plaintiff's September 3, 2025 discovery responses all contain the caveat, "Discovery and investigation are ongoing, and Plaintiff reserves the right to supplement and/or amend this response." The record does not contain a supplement discovery response, nor does Plaintiff argue or provide such a document. Considering that Plaintiff had more than six months to supplement his discovery responses and failed to do so, the court can infer that Plaintiff cannot produce more evidence on the existence of the Transmission Defect in the Subject Vehicle or that Ford had prior knowledge but concealed the Transmission Defect. (See *Gulf Ins. Co. v. Berger* (2000) 79 Cal.App.4th 114, 134 ["to grant summary judgment, the court must be able to infer from the record that the plaintiff could produce no other evidence on the disputed point."])

Plaintiff's opposition heavily relies on the TSBs to demonstrate Ford's prior knowledge of the Transmission Defects. As noted above, however, the TSBs are not proper matters for judicial notice, and Plaintiff's citation to *Bowser* does not support otherwise.

Given the foregoing, the court GRANTS Ford's motion for summary adjudication of the sixth cause of action for fraudulent concealment – inducement.

V. CONCLUSION

Based on the foregoing, The court DENIES Ford's motion for summary judgment.

The court DENIES Ford's motion for summary adjudication of the first, second, third, and fourth causes of action.

The court GRANTS Ford's motion for summary adjudication of the sixth cause of action.

The Court will prepare the formal Order.

Calendar Lines # 6 – 7
Case Name Ying Wang vs The John Stewart Company et al.
Case No. 25CV469820
Motion to Compel (Line # 6) & Motion for Protective Order (Line # 7) The defendant The John Stewart Company and Joanna Flores (collectively “JSC”) filed a motion to compel responses to special interrogatories, set one and sanctions (Line #6). The plaintiff Ying Wang filed a motion for protective order to limit the number of interrogatories and scope and sanctions (Line #7). The Background portion set forth in Line #6 also applies to Line #7. <u>MOTION TO COMPEL (LINE #6)</u> I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a housing dispute. On July 7, 2025, Plaintiff Ying Wang (“Wang”) filed a Complaint against Defendants The John Stewart Company, Joanna Flores, Betty Ann Gardens Leasing Office, and HomeFirst Services of Santa Clara County (collectively “Defendants”) for statutory and common law violations, including, negligence, violation of Fair Housing Act, violation of Americans with Disability Act, intentional infliction of emotional distress, constructive eviction, breach of duty, invasion of property, civil conspiracy and relational, disability and racial discrimination and declaratory and injunction relief. (Complaint). B. RELEVANT PROCEDURAL BACKGROUND On August 14, 2025, Defendants JSC propounded written discovery including special interrogatories (“SPROG”), set one, consisting of 77 interrogatories on Plaintiff Wang. (Declaration of Kennick, at p. 7; Exhibit A). JSC asserts that responses were due on September 18, 2025. (<i>Id.</i>) On September 1, 2025, Plaintiff Wang served a motion for protective order regarding the special interrogatories, but no hearing date was provided. (<i>Id.</i>; Exhibit B). On September 11, 2025, the plaintiff served an application for a protective order, but no hearing date was provided. (<i>Id.</i>) When the Defendants JSC did not receive responses to discovery, it reached out to the plaintiff and granted a two-week extension. (<i>Id.</i>) By October 2025, Defendant JSC did not receive any responses to the SPROG. The motion was filed on October 14, 2025, Defendant JSC filed this motion to compel SPROGs, set one and sanctions. The motion was accompanied by a proof of service via mail and electronic service to the plaintiff in proper on that same day. The plaintiff opposes the motion as procedurally defective, premature, excessive, duplicative, overbroad, and in violation of the statutory limits, and filed opposition papers on April 15, 2026. (Plaintiff’s Opposition, p. 2-3). Plaintiff denies to be evading discovery and points to efforts to file a protective order pertaining to the SPROG in September 2025. (<i>Id.</i>, at p. 3; Declaration of Wang, at p. 2). Plaintiff contends that multiple defendants in this matter have propounded discovery with Defendant JTC propounding 77 interrogatories and Defendant HomeFirst propounding 60 interrogatories, citing this exceeds the statutory limit. (<i>Id.</i>, at p. 4). Plaintiff contests that defendants refused to reduce the number of interrogatories. (Declaration of Wang, at p. 2). Plaintiff asserts that defendants fail to provide sufficient justification, burdensome, excessive and constitutes a misuse of discovery. (<i>Id.</i>, at p. 4-6). In response to Defendants John Stewart’s motion for sanctions, the plaintiff asserts to have acted in good faith and thus deems the request improper. Rather, the plaintiff seeks \$1,000.00 in monetary sanctions against the Defendants conduct for unnecessary motion practice. Defendant JTC attached a declaration citing its need to exceed the 35 SPROG that was attached to its SPROG, set one. (Declaration of Kennick, at p.1; Exhibit A). Defense argues that the additional 42 SPROG in set one is warranted under Code of Civil Procedure section 2030.070(a) “. . . because of the quality and complexity of the issues involved in this case and because of the expedience of using this method of discovery. The Interrogatories